

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: August 12, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

ORDER EXTENDING DEADLINES AND PAGE LIMIT FOR MOTION TO COMPEL

On August 6, 2025, the parties contacted me pursuant to the instructions in the Scheduling Order [Dkt. 23] to alert me to a discovery dispute that they have not been able to resolve informally. On August 7, 2025, I entered an Order Setting Discovery Conference that set deadlines for Respondent's motion to compel and Complainant's Opposition. Dkt. 37. On August 8, 2025, Respondent wrote a letter requesting leave to exceed the page limit for the motion, and on August 11, 2025, Respondent sent another letter seeking a one-day extension due to unexpected family obligations. Dkt. 38, 39. I responded by email to counsel for both parties, instructing them not to file letter motions and to file their requests with the office of the Secretary. Respondent did so, and also filed a letter stating that Complainant's counsel consented to the one-day extension, and to a five-page increase in the motion page limit (Respondent seeks a 10-page increase). Dkt. 40.

Given the nature of motions to compel and the large volume of discovery at issue, Respondent's request to exceed the page limits is **GRANTED**. The motion to compel and opposition may not exceed 20 pages. The motion to extend is also **GRANTED**. The motion to compel must be filed no later than **August 13, 2025**, and the opposition no later than **August 20, 2025**.

The parties are reminded that any application or request for an order or ruling not otherwise specifically provided for in the Commission's rules must be made by motion. 46 C.F.R. § 502.69(a). The moving party has a duty to confer in the case of any non-dispositive motion, such as a motion for extension of time or to exceed page limits. 46 C.F.R. § 502.71(a). Letters to the presiding officer may not take the place of a motion, and the procedure described

in the scheduling order for alerting the presiding officer to unresolved discovery disputes applies to that circumstance only. When filing motions or other documents with the Office of the Secretary, parties must provide a courtesy copy to judges@fmc.gov.

SO ORDERED.

ALEX
CHINTELLA

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ALEX CHINTELLA
Date: 2025.08.12
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Alex M. Chintella
Administrative Law Judge